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CASHIERS

3. Plaintiff demands a trial by jury on each and every one of the claims pleaded

herein.

VENUE

4. Venue is proper for the United States District Court for the Southern District of New York pursuant to 28 U.S.C. § 1391 (a), (b) and (c).

PARTIES

5. Plaintiff KHADIJETOU BA is a resident of the City and State of New York.

6. Defendant THE CITY OF NEW YORK is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant THE CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by them.

7. Defendants MACK, MELHADO, LAULER, MERGECHE, and DOES are and were at all times relevant herein duly appointed and acting officers, servants, employees and agents of THE CITY OF NEW YORK and/or the New York City Police Department, a municipal agency of defendant THE CITY OF NEW YORK. The aforementioned defendants are and were at all times relevant herein acting under color of state law in the course and scope of their duties and functions as officers, agents, servants, and employees of defendant THE CITY OF NEW YORK, were acting for, and on behalf of, and with the power and authority vested in them by THE CITY OF NEW YORK, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties. The aforementioned defendants are sued in their individual capacities.

STATEMENT OF RELEVANT FACTS

8. On January 12, 2009, at or about 4:45 a.m., plaintiff BA flagged down a police car occupied by defendants MACK and MELHADO in the vicinity of 1515 Macombs Road, Bronx, New York. Plaintiff told defendants MACK and MELHADO that plaintiff had been sexually assaulted by the bouncer at the club at that location, and pointed the bouncer out to defendants MACK and MELHADO.

9. Defendants MACK and/or MELHADO then spoke to the bouncer, after which they arrested plaintiff. Plaintiff was charged with Operating a Motor Vehicle While Under the Influence of Alcohol, a misdemeanor, and other related charges. In fact, plaintiff did not operate a motor vehicle at any time on January 12, 2009, nor had plaintiff consumed any alcohol, nor had she engaged in any other illegal conduct.

10. Plaintiff was prosecuted upon a criminal court accusatory instrument signed by defendant MACK and a supporting deposition signed by defendant MERGECHÉ. Defendant LAULER, who was defendant MERGECHÉ's partner and who was present during the incident, failed to intercede to prevent the arrest and prosecution of plaintiff.

11. Plaintiff was acquitted of all charges at a jury trial.

FIRST CLAIM

**DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION AND 42 U.S.C. §1983**

12. The plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

13. By their conduct and actions in falsely arresting and maliciously prosecuting

plaintiff BA, by fabricating evidence against plaintiff, and by failing to intercede to prevent the complained of conduct, defendants MACK, MELHADO, LAULER, MERGECHE, and DOES, acting under color of law and without lawful justification, intentionally, and/or with a deliberate indifference to or a reckless disregard for the natural and probable consequences of their acts, caused injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

14. As a result of the foregoing, plaintiff was deprived of liberty, suffered emotional distress, humiliation, costs and expenses, and was otherwise damaged and injured.

SECOND CLAIM

LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL VIOLATIONS

15. The plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

16. At all times material to this complaint, defendant THE CITY OF NEW YORK had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

17. At all times material to this complaint, defendant THE CITY OF NEW YORK failed to properly train, screen, supervise, or discipline employees and police officers, and failed to inform the individual defendants' supervisors of their need to train, screen, supervise or discipline defendants MACK, MELHADO, LAULER, MERGECHE, and DOES.

18. The policies, practices, customs, and usages, and the failure to properly train,

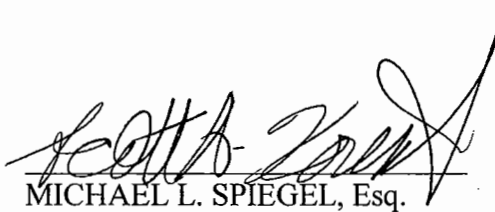
screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

19. As a result of the foregoing, plaintiff was deprived of liberty, suffered emotional distress, humiliation, costs and expenses, and was otherwise damaged and injured.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Pre- and post-judgment costs, interest and attorneys' fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
September 20, 2011

A handwritten signature in black ink, appearing to read "Michael L. Spiegel", written over a horizontal line.

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